

**OFFICE OF THE SECRETARY**

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September 16, 2020

The Honorable J. Couzens  
Judge of the Superior Court  
County of Placer  
10820 Justice Center Drive  
Roseville, CA 95678

Re: Michael Anthony Disandro  
CDCR No: F53002  
Case No: 62-061874  
Date of Sentence: November 13, 2006

Dear Honorable J. Couzens:

The purpose of this letter is to provide the court with the authority to resentence inmate Michael Disandro, F53002 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Disandro is commended for remaining disciplinary free since being received to CDCR on November 29, 2006. Inmate Disandro has also received 11 Laudatory Chrono's from staff for facilitating and/or participating in numerous self-help groups and/or activities. On January 7, 2019, Inmate Disandro completed over 2080 Clinically Supervised Internship Hours, and passed the exam to become a California Substance Use Disorder, Certified Counselor. Inmate Disandro is currently assigned to the Offender Mentor Certification Program as a Certified Mentor. Inmate Disandro has facilitated numerous Self-help groups relating to social behavior and alcohol/drug dependencies. These classes are crucial in



inmate Disandro's successful release back into society since the majority of his crimes appear to be drug related. Inmate Disandro also participates in Paws for Life, Self-Help Program as a Certified Dog Trainer, and Alcoholics Anonymous, Criminal Gangs Anonymous, Celebrate Recovery, Veterans, Inmate Leisure Activity Groups. In past assignments, Disandro has helped facilitate classes in the Youthful Offender Program and was recognized for helping at risk youth within the communities. Various staff at the California Medical Facility have been interviewed in regards to inmate Disandro's current programming and behavior. Staff stated that inmate Disandro is very respectful and he has not received any type of disciplinary action during this term. Inmate Disandro stays very busy and participates in numerous activities within the institution.

Having reviewed the enclosed documentation it appears that inmate Disandro's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

  
RALPH M. DIAZ  
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Alan V. Pineschi, Presiding Judge  
Placer County District Attorney's Office  
Placer County Public Defender's Office